

Atmakuri Ramlal vs State Of Ap on 18 August, 2020

THE HON'BLE SMT. JUSTICE LALITHA KANNEGANTI

CRIMINAL PETITION NO.1581 OF 2020

ORDER:

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This petition is filed under Section 438 of the Code of Criminal Procedure, 1973 (for short "Cr.P.C.") seeking anticipatory bail to the petitioners in the event of their arrest in connection with an unregistered crime on the file of Jangareddigudem Police Station, West Godavari District for the offences punishable under Section 498-A of the Indian Penal Code, 1860 (for short, "IPC") and sections 3 and 4 of the Dowry Prohibition Act, 1961 (for short "DP Act").

2. The petitioners are the accused Nos.2 to 5 and they have come up before this court on the apprehension that the police may arrest them in respect of the allegations made by their daughter-in-law. The petitioners are mother-in-law, father-in-law, sister-in-law and sister-in-law's husband.

3. Heard Sri M.Suryanarayana, learned counsel for petitioners and the learned Public Prosecutor for the respondent-State.

4. The learned counsel for the petitioners would submit that the petitioners 3 and 4 who are residing in a faraway place are nothing to do with the affairs of the family of their brother i.e. A-1. The petitioners 1 and 2 are old aged parents suffering with several ailments. He further submits that already a petition under Section 9 of the Hindu Marriage Act was filed by the husband of the de facto complainant/A-1 before the Family Court at Berhampur, Orissa District in C.P.No.47 of 2020.

5. Since the crime is not yet registered and the petitioners have approached this Court only on apprehension of their arrest this Court is not inclined to consider the petition at this stage.

6. However, in case the police want to arrest the petitioner, they shall follow the procedure contemplated under Section 41-A Cr.P.C. and the guidelines issued by the Apex Court in *Arnesh Kumar v. State of Bihar*¹.

7. Accordingly, the Criminal Petition is disposed of.

Consequently, miscellaneous petitions pending, if any, shall also stand closed.

LALITHA KANNEGANTI, J Date : 18.08.2020 IKN/KA
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